

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1284

By: Caldwell (Chad)

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 24-101.3, which relates to school suspensions; requiring incoming students from another state to sign affidavits certifying they have not been investigated for or committed certain acts; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 24-101.3, is amended to read as follows:

Section 24-101.3. A. Any student who is guilty of an act described in paragraph 1 of subsection C of this section may be suspended out-of-school in accordance with the provisions of this section. Each school district board of education shall adopt a policy with procedures which provides for out-of-school suspension of students. The policy shall address the term of the out-of-school suspension, provide an appeals process as described in subsection B of this section, and provide that before a student is suspended out-of-school, the school or district administration shall consider and

1 apply, if appropriate, alternative in-school placement options that
2 are not to be considered suspension, such as placement in an
3 alternative school setting, reassignment to another classroom, or
4 in-school detention. The policy shall address education for
5 students subject to the provisions of subsection D of this section
6 and whether participation in extracurricular activities shall be
7 permitted.

8 B. 1. Students suspended out-of-school for ten (10) or fewer
9 days shall have the right to appeal the decision of the
10 administration as provided in the policy required in subsection A of
11 this section. The policy shall specify whether appeals for short-
12 term suspensions as provided in this subsection shall be to a local
13 committee composed of district administrators or teachers or both,
14 or to the district board of education. Upon full investigation of
15 the matter, the committee or board shall determine the guilt or
16 innocence of the student and the reasonableness of the term of the
17 out-of-school suspension. If the policy requires appeals for short-
18 term suspensions to a committee, the policy adopted by the board
19 may, but is not required to, provide for appeal of the committee's
20 decision to the board.

21 2. Students suspended out-of-school for more than ten (10) days
22 and students suspended pursuant to the provisions of paragraph 2 of
23 subsection C of this section may request a review of the suspension
24 with the administration of the district. If the administration does

1 not withdraw the suspension, the student shall have the right to
2 appeal the decision of the administration to the district board of
3 education. Except as otherwise provided for in paragraph 2 of
4 subsection C of this section, no out-of-school suspension shall
5 extend beyond the current semester and the succeeding semester.
6 Upon full investigation of the matter, the board shall determine the
7 guilt or innocence of the student and the reasonableness of the term
8 of the out-of-school suspension. A board of education may conduct
9 the hearing and render the final decision or may appoint a hearing
10 officer to conduct the hearing and render the final decision. The
11 decision of the district board of education or the hearing officer,
12 if applicable, shall be final.

13 C. 1. Students who are guilty of any of the following acts may
14 be suspended out-of-school by the administration of the school or
15 district:

- 16 a. violation of a school regulation,
- 17 b. possession of an intoxicating beverage, low-point
18 beer, as defined by Section ~~163.2~~ 1-103 of Title ~~37~~
19 37A of the Oklahoma Statutes, or missing or stolen
20 property if the property is reasonably suspected to
21 have been taken from a student, a school employee, or
22 the school during school activities, and
- 23 c. possession of a dangerous weapon or a controlled
24 dangerous substance while on or within two thousand

(2,000) feet of public school property, or at a school event, as defined in the Uniform Controlled Dangerous Substances Act. Possession of a firearm shall result in out-of-school suspension as provided in paragraph 2 of this subsection.

2. Any student found in possession of a firearm while on any public school property or while in any school bus or other vehicle used by a public school for transportation of students or teachers shall be suspended out-of-school for a period of not less than one (1) year, to be determined by the district board of education pursuant to the provisions of this section. The term of the suspension may be modified by the district superintendent on a case-by-case basis. For purposes of this paragraph the term "firearm" shall mean and include all weapons as defined by 18 U.S.C., Section 921.

3. Any student in grades six through twelve found to have assaulted, attempted to cause physical bodily injury, or acted in a manner that could reasonably cause bodily injury to a school employee or a person volunteering for a school as prohibited pursuant to Section ~~6-146~~ 6-149.7 of this title shall be suspended for the remainder of the current semester and the next consecutive semester, to be determined by the board of education pursuant to the provisions of this section. The term of the suspension may be modified by the district superintendent on a case-by-case basis.

1 D. At its discretion a school district may provide an education
2 plan for students suspended out-of-school for five (5) or fewer days
3 pursuant to the provisions of this subsection. The following
4 provisions shall apply to students who are suspended out-of-school
5 for more than five (5) days and who are guilty of acts listed in
6 subparagraphs a and b of paragraph 1 of subsection C of this
7 section. Upon the out-of-school suspension, the parent or guardian
8 of a student suspended out-of-school pursuant to the provisions of
9 this subsection shall be responsible for the provision of a
10 supervised, structured environment in which the parent or guardian
11 shall place the student and bear responsibility for monitoring the
12 student's educational progress until the student is readmitted into
13 school. The school administration shall provide the student with an
14 education plan designed for the eventual reintegration of the
15 student into school which provides only for the core units in which
16 the student is enrolled. A copy of the education plan shall also be
17 provided to the student's parent or guardian. For the purposes of
18 this section, the core units shall consist of the minimum English,
19 mathematics, science, social studies and art units required by the
20 State Board of Education for grade completion in grades kindergarten
21 through eight and for high school graduation in grades nine through
22 twelve. The plan shall set out the procedure for education and
23 shall address academic credit for work satisfactorily completed.

1 E. A student who has been suspended out-of-school from a public
2 or private school in the State of Oklahoma or another state for a
3 violent act or an act showing deliberate or reckless disregard for
4 the health or safety of faculty or other students shall not be
5 entitled to enroll in a public school of this state, and no public
6 school shall be required to enroll the student, until the terms of
7 the suspension have been met or the time of suspension has expired.
8 A parent or guardian of a student having attended a public or
9 private school from another state who is seeking enrollment at a
10 public school within the State of Oklahoma shall sign an affidavit
11 prior to enrollment in a public school within the State of Oklahoma
12 declaring the student has not been under investigation for or
13 committed a violent act or an act showing deliberate or reckless
14 disregard for the health or safety of faculty or other students
15 prior to enrolling at a public school within Oklahoma.

16 F. 1. No public school of this state shall be required to
17 provide education services in the regular school setting to any
18 student who has been:

- 19 a. adjudicated as a delinquent for an offense defined as
20 a violent crime in Section 571 of Title 57 of the
21 Oklahoma Statutes,
- 22 b. convicted as an adult of an offense defined as a
23 violent crime in Section 571 of Title 57 of the
24 Oklahoma Statutes,

- c. who has been removed from a public or private school in the State of Oklahoma or another state by administrative or judicial process for a violent act or an act showing deliberate or reckless disregard for the health or safety of faculty or other students,
- d. suspended as provided for in paragraph 3 of subsection C of this section, or
- e. has been removed from a public or private school in the state or another state by administrative or judicial process for an act of using electronic communication, as defined in Section 24-100.3 of this title, with intent to terrify, intimidate or harass, or threaten to inflict injury or physical harm to faculty or other students.

2. The school in which a student as described in paragraph 1 of this subsection is subsequently enrolled may elect to not provide education services in the regular school setting until the school determines that the student no longer poses a threat to self, other students or school district faculty or employees. Until the school in which such student subsequently enrolls or re-enrolls determines that the student no longer poses a threat to self, other students or school district faculty or employees, the school may provide education services through an alternative school setting, home-based instruction, or other appropriate setting. If the school provides

1 education services to the student at a district school facility, the
2 school shall notify any student or school district faculty or
3 employee victims of the student, when known, and shall ensure that
4 the student will not be allowed in the general vicinity of or
5 contact with a victim of the student, provided the victim notifies
6 the school of the victim's desire to refrain from contact with the
7 offending student.

8 G. Students suspended out-of-school who are on an
9 individualized education plan pursuant to the Individuals with
10 Disabilities Education Act, P.L. No. 101-476, or who are subject to
11 the provisions of subsection F of this section and who are on an
12 individualized education plan shall be provided the education and
13 related services in accordance with the student's individualized
14 education plan.

15 H. A student who has been suspended for a violent offense which
16 is directed towards a classroom teacher shall not be allowed to
17 return to that teacher's classroom without the approval of that
18 teacher.

19 I. At its discretion, a school district may require a student
20 guilty of acts listed in subparagraph a or b of paragraph 1 of
21 subsection C of this section to complete intervention and prevention
22 programs as provided by designated Youth Service Agencies, if
23 available.

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1 J. No school board, administrator or teacher may be held
2 civilly liable for any action taken in good faith which is
3 authorized by this section.

4 SECTION 2. This act shall become effective July 1, 2025.

5 SECTION 3. It being immediately necessary for the preservation
6 of the public peace, health or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

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